

Whangarei District Council Meeting Minutes

Date: Thursday, 23 November, 2023

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo

Cr Gavin Benney

Cr Nicholas Connop

Cr Ken Couper

Cr Jayne Golightly

Cr Phil Halse

Cr Deborah Harding

Cr Patrick Holmes

Cr Scott McKenzie

Cr Marie Olsen

Cr Carol Peters

Cr Simon Reid

Cr Phoenix Ruka

Cr Paul Yovich

Scribe

C Brindle (Senior Democracy Adviser)

Administrative matters

- Item 5.1 Police report - withdrawn
- Item 7.10 Fluoridation Motion to Consult – Consultation Options – to be taken after Item 4
- Members of the public recording and taking photos

1. Karakia/Prayer

Cr Olsen opened the meeting with a prayer / karakia.

3. Apologies / Kore Tae Mai

There were no apologies.

4. Public Forum / Huihuinga-a-tangata

Tim Hunt - Present data and concerns regarding microwave radiation emissions from the cell tower at the Onerahi Telegraph Exchange site

Kamo Community Inc – Ruth Marsh, Presentation of Kamo Community In ten-year Concept Plan

Eliana and Eugene Fayerberg - Ngunguru Road school signage and speed reduction

Isa Inui - Health, Safety & benefit for the people in the area. Formulating beneficial relationships between WDC and the people.

5. Police Report

5.1 Police Report November 2023

Item 5.1 was withdrawn.

6. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

6.1 Minutes Whangarei District Council Meeting held on 26 October 2023

Moved By Cr Carol Peters

Seconded By Cr Marie Olsen

That the minutes of the Whangarei District Council meeting held on Thursday 26 October 2023, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6.2 Minutes Whangarei District Council held 9 November 2023

Moved By Cr Simon Reid

Seconded By Cr Marie Olsen

That the minutes of the Whangarei District Council meeting held on Thursday 9 November 2023, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

7. Decision Reports / Whakatau Rīpoata

7.1 Amendments to the Community Development Committee Terms of Reference

Moved By Cr Gavin Benney

Seconded By Cr Carol Peters

That the Council approves the amendments to the Community Development Committee Terms of Reference.

Carried

7.2 Revocation of Local Purpose (Water Supply) Reserve at Whau Valley

Moved By Cr Ken Couper

Seconded By Cr Nicholas Connop

That the Council approves initiation of the process to revoke the reserve status of Lot 1 DP 427274, Local Purpose (Water Supply) Reserve, pursuant section 24(1)(b) of the Reserves Act 1977.

Carried

7.3 Alcohol Control Bylaw review

Moved By Cr Ken Couper

Seconded By Cr Jayne Golightly

That Council:

1. Determines that:
 - a. a bylaw is the most appropriate tool for Council to address the problem of alcohol-related crime and disorder in public places;
 - b. the draft Alcohol Control Bylaw (Attachment 1) is the most appropriate form of bylaw;
 - c. the draft Alcohol Control Bylaw does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990.
 - d. a high level of crime and disorder, caused or made worse by alcohol consumption, is likely to arise if the Alcohol Control Bylaw does not continue.

Carried

7.4 Water Supply Bylaw 2023

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That Council:

1. Receives the feedback included in Attachment 1.
2. Approves the amendments to the proposed Water Supply Bylaw, in accordance with option (a) under section 4.1 of this report.

Procedural Motion

Moved By Cr Ken Couper

Seconded By Cr Simon Reid

That the motion now be put.

**The procedural Motion was Carried
The Motion was Carried**

Motion

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That Council:

1. Determines that the Water Supply Bylaw 2023, as amended by (2) above and shown with track changes in Attachment 2:
 - a. is the most appropriate form of the Bylaw; and
 - b. does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990.
2. Revokes the Water Supply Bylaw 2012 (Attachment 4) and replaces it with the Water Supply Bylaw 2023 (Attachment 3) with effect from 7 December 2023.
3. Delegates all its responsibilities, duties and powers under this Bylaw to the Chief Executive, except for:
 - a. the power to set fees;
 - b. the power to make a decision for which a Council resolution is required;
 - c. the power to hear and decide on any appeals.
4. Authorises the Chief Executive to make any minor edits or amendments to the Water Supply Bylaw to correct any spelling or typographical errors and/or to reflect decisions made by Council at this meeting.

Carried

7.5 Freedom Camping Enforcement Programme 2023-24 - Variation to Regulatory Services Contract

Moved By Cr Marie Olsen

Seconded By Cr Simon Reid

That the Council:

1. Notes that Council has successfully obtained \$200,000 of freedom camping grant funding from the Ministry of Business, Innovation and Employment (MBIE), up to \$142k of which relates to the provision of education, monitoring and enforcement of freedom camping through Council's Regulatory Services contractor, Armourguard.
2. Notes that in the absence of MBIE funding, Council has not funded freedom camping monitoring and enforcement through its Regulatory Services contract, both through the 2023/24 season and beyond.

3. Approves a MBIE funded Freedom Camping Education, Monitoring and Enforcement Programme for the 2023/24 season through the Regulatory Services contract to the value of up to \$141,684, as quoted and thus extending the current (five-year) contract value from \$12,494,879.45 to \$12,636,563.45, plus any future escalation provided for under the approved contract.
4. Notes that contestable MBIE funding for Freedom Camping Education, Monitoring and Enforcement Programme is unlikely to be available in future seasons, with funding for delivery of this service in future years to be consulted on through the Long Term Plan.
5. Delegates the Chief Executive to execute on behalf of Council the required variation to contract.

Carried

7.6 IQP Transfer of Powers - Decision

Moved By Cr Scott McKenzie

Seconded By Cr Ken Couper

That the Council considers and deliberates on submissions received.

Carried

Motion

Moved By Cr Scott McKenzie

Seconded By Cr Carol Peters

That the Council:

1. Resolves to approve the transfer of powers to approve Independently Qualified Persons and to set fees under the Building Act 2004 to Auckland Council; and
2. Delegates to the General Manager, Planning and Development the authority to enter into a legal agreement with Auckland Council in relation to the transfer.

On the motion being put His Worship called for a division:

Recorded	For	Against	Abstain
His Worship the Mayor		X	
Cr Gavin Benney	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly		X	
Cr Phil Halse		X	

Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	8	6	0
			Carried

A short break was taken from 11.12am to 11.22am following Item 7.6.

7.7 Temporary Road Closure - Ruakaka Christmas Parade

Moved By Cr Marie Olsen

Seconded By Cr Ken Couper

That Whangarei District Council,

1. Approves the temporary closure of the following roads to ordinary traffic for the Ruakaka Christmas Parade on the following date in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Saturday 9 December 2023

Peter Snell Road, from Tiki Place to Takutai Place

Takutai Place, from Peter Snell Road to Sime Road

Period of Closure: 9.30am to 11.30am

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

7.8 Temporary Road Closure - Yule Market 2023 (with Movies in the Park)

Moved By Cr Carol Peters

Seconded By Cr Marie Olsen

That Whangarei District Council,

1. Approves the temporary closure of the following roads to ordinary traffic for the Yule Market 2023 (with Movies in the Park) on the following date in accordance with section 342 (1)(b) and Schedule 10 Clause 11 of the Local Government Act 1974.

Friday 8 December 2023

Pohe Island Road, from Riverside Drive to the yellow barrier arm on Pohe Island Road.

Period of Closure: 3pm to 9.30pm

2. Approves the temporary closure of the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notices of these temporary road closures.

Carried

7.9 Temporary Road Closure Application - ChillTech Beach to Basin 2024

Moved By Cr Nicholas Connop

Seconded By Cr Deborah Harding

That Whangarei District Council,

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the ChillTech Beach to Basin on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Sunday 3 March 2024

Beach Road, from Pah Road roundabout to Cliff Street/Beach Road boat ramp.

Period of Closure: 8am – 9am.

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel, or amend any or all of the temporary road closures if applicable.

Carried

Item 7.10 was taken after Item 4.

7.10 Fluoridation Motion to Consult - Consultation Options

Moved By Cr Nicholas Connop

Seconded By Cr Marie Olsen

That the Council

1. Notes that under the Health Act 1956 and Local Government Act 2002, there is no requirement for local authorities to consult with the community on this matter as it is a directive from the Ministry of Health.
2. Notes that the results of the consultation with the community on their view on fluoridation will be provided to the Ministry of Health for their consideration.
3. Supports option 2 – a short online survey on the fluoridation of water.

Procedural Motion

Moved By Cr Ken Couper

Seconded By Cr Jayne Golightly

That this item does lie on the table and not be discussed further at this meeting.

Carried

Item 7.11 was taken after Item 7.9.

7.11 WDC's Submission on Wai Tamaki ki te Hiku's Asset Management Plan and Funding and Pricing Plan

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That Council;

1. Approve it's submission on Wai Tamaki ki Te Hiku's draft Asset Management and Funding and Pricing Plans;
2. Agree the submission be re-worked and approved under the constraint delegations by His Worship the Mayor and the Chair of the Infrastructure Committee.
3. Authorise the Chief Executive to make any minor changes required and to lodge the submission with the Department of Internal Affairs on its behalf.
4. Note the final submission, following lodgement, will be reported back to council for noting.

Amendment

Moved By Cr Ken Couper

Seconded By Cr Jayne Golightly

2. Agree the submission be re-worked and approved under the constraint delegations by His Worship the Mayor, the Chair of the Infrastructure Committee, the Deputy Chair Risk and Audit Committee and the Chair of the Finance Committee.

**The amendment was Carried
and subsequently Carried
as the substantive Motion**

Crs Benney and Connop requested their votes against both the amendment and motion, be recorded.

8. Information Reports / Ngā Pūrongo Kōrero

8.1 Chief Ombudsman Report - Local Council Meetings and Workshops

Moved By Cr Scott McKenzie

Seconded By Cr Nicholas Connop

That the Council notes the report.

Amendment

Moved By Cr Carol Peters

Seconded By Cr Patrick Holmes

That the Council notes the report and acts on the suggestion of the Ombudsman and only hold in confidence those matters that meet the relevant provisions of the Local Government Official Information and Meetings Act.

Carried

9. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered	Reason for passing this resolution in	Ground(s) under Section 48(1) for
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		relation to each matter	passing this resolution
1.1	Confidential Minutes Whangarei District Council 26 October 2023	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Infrastructure as a Service		
1.3	Land Purchase – Opouteke Road		
1.4	Update – Legal Proceedings		
1.5	Property Matter		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To enable the Council to carry on without prejudice or disadvantage negotiations	Section 7(2)(i)
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.4	To maintain legal professional privilege. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(g) Section 7(2)(i)
1.5	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(h) Section 7(2)(i)

Carried

10. Closure of Meeting / Te katinga o te Hui

Cr Olsen closed the meeting at 1pm with a karakia/prayer.

Confirmed this 21st day of December 2023

His Worship the Mayor Vince Cocurullo (Chairperson)